

24STCV14687 24STCV14687

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Case Number: 24STCV14687 Hearing Date: August 3, 2026 Dept: 735

Imarius Martin v.

Mario Meza, et al.

Plaintiff Imarius

Martin's Motion to Continue Trial and Final Status Conference

BACKGROUND

On June 12, 2024, plaintiff Imarius Martin (Plaintiff) filed this action for conversion and related claims against defendants Mario Meza, Elizabeth Enriquez, Rapido Immigration Bonds Inc., United States Fire Insurance Company, and Bankers Insurance Company.

Plaintiff's claims arise from possession of a Lamborghini Urus (Vehicle), which he contends the defendants fraudulently converted to their own use by exploiting and misusing the bail bonds process while Plaintiff was incarcerated in August 2023.

On September 2, 2025, defendants Meza and Enriquez cross-complained against Plaintiff as well as Alex Ghokasian Khoygani and VGK Towing, Inc. for assault, battery, trespass, and related claims. Meza and Enriquez contend the cross-defendants wrongfully took possession of the Vehicle by causing it to be towed from Meza and Enriquez's property on September 3, 2023.

The Court dismissed Plaintiff's claims against United States Fire Insurance Company with prejudice on December 22, 2025. Enriquez and Meza dismissed their cross-claims against Khoygani and VGK Towing on June 29, 2026. The other claims and cross-claims remain unresolved.

On July 1, 2026, Plaintiff filed the instant motion (1) to continue the trial date set for September 18, 2026, to a date on or after September 1, 2027; (2) to continue the Final Status Conference accordingly; and (3) for all pretrial deadlines, including discovery deadlines, to run from the continued date.

Defendants Enriquez, Meza, and Rapido Immigration Bonds (Defendants) oppose Plaintiff's motion.

LEGAL STANDARD

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered. [¶] Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance."

(Cal. Rules of Court, rule 3.1332(b) & (c).)

A showing of good cause requires a demonstration of diligence in preparing for trial. But if with diligence, a party has been unable to get essential testimony, documents, or other material evidence despite diligence, that inability may be good cause for a continuance. (Cal. Rules of Court, rule 3.1332(c)(6).) Other factors the court must consider in whether to continue a trial include the proximity of the trial date, whether there were previous continuances, the length of the continuance requested, the availability of alternative means to address the reason for the continuance, potential prejudice to the parties or witnesses, the court's own calendar, and whether the interests of justice are best served by a continuance or by imposing conditions on the continuance. (Cal. Rules of Court, rule 3.1332(d).) Delaying litigation is generally disfavored in light of efficiency concerns, those concerns are secondary to the primary function of the courts—to adjudicate

disputes on their merits.

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of several other filings in this action. The requests are denied as unnecessary; particularly for Plaintiff's counsel's prior motions to be relieved, judicial notice would only obscure the distinction between the fact of the documents' filings and the truth of statements therein.

DISCUSSION

Plaintiff argues the trial date should be continued because he has retained new counsel, and he has yet to propound his own discovery or respond to the twelve sets of discovery propounded on him by the three Defendants who oppose his motion. He contends he cannot complete his own discovery or respond to Defendants' in time to prepare sufficiently for trial.

Defendants correctly observe Plaintiff has not been diligent: he has been on notice of his prior counsel's intent to withdraw since first service of his prior counsel's motion to be relieved in September 2025, and he has been in receipt of Defendants' written discovery since 2025.

The Court finds Plaintiff has failed to demonstrate good cause for a one-year continuance because he has failed to demonstrate he diligently prepared for trial. Plaintiff was aware of his prior counsel's intent to withdraw months before his counsel's motion was granted, but he did not seek or obtain new counsel until June 2026. In fact, his prior counsel's motion – which Plaintiff did not oppose – was supported by a declaration stating that Plaintiff had voluntarily terminated his relationship with his prior counsel in August 2025. (See 09-03-2025 Decl. of Eric S. Adams, Jr., ¶ 2.) Although Plaintiff refused to sign a substitution of attorney, it is undisputed that he elected to represent himself nearly a year ago but declined to retain new counsel for ten months.

Plaintiff's retention of counsel close to the trial date is a result of his own failure to seek new counsel after firing his prior counsel in August

2025, or at the latest after receiving notice of his prior counsel's intent to withdraw the following month. The fact that Plaintiff technically represented himself for several months does not excuse his prior failure to propound his own discovery or respond to Defendants'.

The trial date is also less than two months away. The date's proximity is of Plaintiff's own making. He did not make his motion as soon as was reasonably practical; whether he was self-represented or not, he was aware long before he retained new counsel that he had not responded to discovery and had not propounded his own. As with his failure to obtain counsel, Plaintiff's time spent self-represented does not excuse him of his duty to participate in litigation he himself filed.

In reply, Plaintiff construes Defendants' opposition to rely solely on the erroneous argument that discovery has closed. (See Reply, 1:27 "Opposition rests on a single premise and a single procedural theory"].) But Defendants' motion does not rely solely, or even primarily, on this argument. They rely primarily on Plaintiff's failure to diligently prepare, a point on which the Court agrees for reasons discussed above.

The Court notes, also, that Plaintiff presents no evidence regarding his own diligence; he submitted no declaration in support of his motion. The motion is supported only with a declaration of his counsel indicating she needs more time to conduct discovery. (Liu Decl., ¶¶ 3-8.) Plaintiff's diligent prosecution "since his current counsel substituted in" in June (Reply, 3:15) does not excuse his failure to diligently prosecute for the ten months prior. And his own recent service of a deposition subpoena on the California Department of Insurance does not establish an excused inability to obtain essential testimony, etc., as contemplated by Rule 3.1332(c)(6). (See Reply, 3:24-4:7.)

CONCLUSION

Plaintiff's motion is denied.

Plaintiff shall give notice.